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File No.: EXP202303817

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On August 31, 2022, a complaint was filed with registration number REGAGE22e00037310828 before the Spanish Agency for Data Protection against A.A.A. with NIF ***NIF.1 (hereinafter, the complained party). The reasons for the complaint are as follows:

The complainant states that under the awning of the street of the complained establishment, there are surveillance cameras camouflaged in smoke detectors that are oriented towards the public road and neighboring establishments, without any prior administrative authorization for this.

Along with the notification, images of the cameras, hidden in smoke detectors, are provided.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged by the complained party, as evidenced by the acknowledgment of receipt in the file, and was also responded to, indicating that the cameras referred to in the complaint were fictitious, were never connected, and that, nevertheless, they have been removed to avoid suspicion. A photograph is attached showing that the cameras are no longer installed.

THIRD: On November 30, 2022, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing, due to the expiration of the three-month period.

LEGAL GROUNDS

I

Competence

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In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection, therefore, is the subject of said Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

“processing”: any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage,

adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, comparison or interconnection, limitation, erasure or destruction;" Images generated by a system of cameras or camcorders are personal data, so their processing is subject to data protection regulations.

Regarding processing for surveillance purposes, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or camcorder systems for the purpose of ensuring the safety of persons and property, as well as their facilities.

The processing of personal data is subject to the other principles of processing contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be "adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed."

The application of the principle of data minimization in the context of surveillance implies that images of the public road cannot be captured, since the processing of images in public places, unless there is government authorization, can only be carried out by the Security Forces and Bodies.

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In some cases, for the protection of private spaces where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public thoroughfare to ensure security purposes.

Under no circumstances will the use of surveillance practices beyond the environment subject to installation be permitted, and in particular, it must not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

The installed cameras may not capture images of third-party private spaces and/or public spaces without a duly justified cause, nor may they affect the privacy of passersby freely moving through the area.

Therefore, the placement of cameras directed towards the private property of neighbors with the intention of intimidating them or affecting their private sphere without a justified cause is not permitted.

III

Application of the Principle of Presumption of Innocence

The principle of presumption of innocence prevents the imposition of an administrative infraction when there is no obtained and verified evidence of the facts that motivate the accusation or of the alleged infringer's involvement in them. Applying the principle "in dubio pro reo" in case of doubt regarding a specific and determined fact, which obliges in any case to resolve such doubt in the most favorable manner for the interested party.

The presumption of innocence must govern without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanctions, as the exercise of the *ius puniendi* in its various manifestations is conditioned on the evidence presented and a contradictory procedure in which one's own positions can be defended.

In this regard, the Constitutional Court in its Judgment 76/1990, of 26/04, considers that the right to the presumption of innocence entails: "that the sanction is based on acts or incriminating evidence of the reproached conduct; that the burden of proof corresponds to the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the result of the evidence presented, freely evaluated by the sanctioning body, must translate into an acquittal ruling.

The presumption of innocence governs without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanction, whether criminal or administrative (TCo 13/1981), as the exercise of the sanctioning right in any of its manifestations is conditioned on the evidence presented and a contradictory procedure in which one's own positions can be defended. According to this principle, no sanction may be imposed based on the culpability of the accused if there is no

incriminating evidence that, in the assessment of the authorities or bodies called to resolve, destroys this presumption (TCo Auto 3-12-81).

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In the present case, although it could initially be inferred from the complaint that the accused party was obtaining images of the public thoroughfare, which would imply a violation of Article 5.1.c of the GDPR, as already described, the documentation provided in the file reveals that the cameras subject to the complaint were, in fact, not capturing images, as they were not connected to any surveillance system, thus being fictitious, installed for deterrent purposes, but not processing any data that needs to be analyzed to verify its legitimacy.

VI

Conclusion

Therefore, based on the aforementioned paragraphs, no evidence has been found that substantiates the existence of an infraction within the jurisdiction of the Spanish Agency for Data Protection.

Thus, in accordance with the indicated, the Director of the Spanish Agency for Data Protection

RESOLVES:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to A.A.A. and to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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